

OTC MARKETS GROUP INC.

A Delaware Corporation

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Federal EIN: 13-3941069
NAICS: 523210
SIC Code: 6289

Supplemental Exhibit 3.13 to:

Issuer's Quarterly Report

For the quarterly period ended March 31, 2022

ISSUER'S EQUITY SECURITIES

COMMON STOCK

Class A Common Stock
\$0.01 Par Value Per Share
17,000,000 Shares Authorized
11,854,360 Shares Outstanding as of April 30, 2022
OTCQX: OTCM

OTC Markets Group Inc. is responsible for the content of this Quarterly Report. The securities described in this document are not registered with, and the information contained in this report has not been filed with, or approved by, the U.S. Securities and Exchange Commission.

**OTC MARKETS GROUP INC.
PERFORMANCE UNIT AWARD AGREEMENT**

THIS PERFORMANCE UNIT AWARD AGREEMENT (the “Award Agreement”) is dated this 25th day of April, 2022, by and between OTC Markets Group Inc., a Delaware corporation (the “Company”), and _____ (“Participant”).

WHEREAS, pursuant to the OTC Markets Group Inc. 2019 Equity Incentive Plan (the “Plan”), the Board of Directors of the Company, as Administrator of the Plan, has approved this Award of Performance Units to the Participant and authorized and directed the execution and delivery of this Award Agreement;

NOW THEREFORE, in consideration of the foregoing, the mutual promises hereinafter set forth, and other good and valuable consideration, the receipt and sufficiency of which is hereby acknowledged, the Company and the Participant hereby agree as follows.

1. **Definitions.** All capitalized terms not otherwise defined herein shall have the meaning ascribed to them in the Plan.

2. **Award of Performance Units.** In consideration of the services performed and to be performed by the Participant, and the Company’s achievement of the Performance Objectives, as defined in Section 4 herein, the Company hereby awards Performance Units to Participant, pursuant and subject to the terms and conditions set forth in this Award Agreement and the Plan.

3. **Performance Period.** The period of performance for this Award Agreement is five (5) years beginning on January 1, 2022 and ending on December 31, 2026 (the “Performance Period”). Each fiscal year beginning on January 1 during the Performance Period shall be referred to as a “Performance Year”, with the Performance Year beginning on January 1, 2022 referred to as the “First Performance Year”, the Performance Year beginning on January 2, 2023 referred to as the “Second Performance Year”, and so on.

4. **Performance Objectives.** The grant of Performance Units to Participant shall be based on the Company achieving Performance Objectives, defined as: increases in the Company’s Gross Revenue and Diluted Earnings Per Share, as reported in the Company’s audited financial statements in its annual report (the “Annual Report”) for the applicable Performance Year, as compared the Company’s Gross Revenue and Diluted Earnings Per Share reported in the Company’s audited financial statements in its 2021 Annual Report (the “Base Performance Year”), as follows:

- **First Performance Year:** An increase of at least 7.5% in the Company’s (i) Gross Revenue, and (ii) Diluted Earnings Per Share, each as compared to the Base Performance Year.
- **Second Performance Year:** An increase of at least 15% in the Company’s (i) Gross Revenue, and (ii) Diluted Earnings Per Share, each as compared to the Base Performance Year.
- **Third Performance Year:** An increase of at least 22.5% in the Company’s (i) Gross Revenue, and (ii) Diluted Earnings Per Share, each as compared to the Base Performance Year.

- **Fourth Performance Year:** An increase of at least 30% in the Company's (i) Gross Revenue, and (ii) Diluted Earnings Per Share, each as compared to the Base Performance Year.
- **Fifth Performance Year:** An increase of at least 37.5% in the Company's (i) Gross Revenue, and (ii) Diluted Earnings Per Share, each as compared to the Base Performance Year.

5. **Granting of Performance Units.** The Company shall grant Performance Units to Participant for each Performance Year in which the Company achieves the Performance Objectives, as described in Section 4 and subject to Section 7 herein (each, a "Grant Year"). Following each Grant Year, the Company will grant to Participant Performance Units equal in value to twenty percent (20%) of the value of the Shares the Participant earned in connection with their annual discretionary bonus during the Base Performance Year. Following any Grant Year, the Performance Units will be granted within thirty (30) days following the publication of the Company's Annual Report for the Grant Year. In the event that the Company does not meet the Performance Objectives in a given Performance Year, the Performance Units will not be granted for that Performance Year ("Unearned Performance Units"), *provided*, however, that Participant may earn such Unearned Performance Units in a subsequent Grant Year. For example, if the Company does not achieve its Performance Objectives in the Third Performance Year, but achieves its Performance Objectives in the Fourth Performance Year, the Company shall grant to the Participant (i) the Unearned Performance Units for the Third Performance Year, and (ii) the Performance Units for the Fourth Performance Year. All Unearned Performance Units remaining at the end of the Performance Period will be forfeited and returned to the Company for future issuance under the Plan pursuant to Section 10(f) of the Plan.

6. **Performance Units; Vesting of Performance Units.** Performance Units shall consist of (i) fifty percent (50%) cash, and (ii) fifty percent (50%) Shares. Each Share shall have a Fair Market Value equal to the value of a Shares on January 29th following the applicable Grant Year. Performance Units shall be unvested at the time of grant ("Unvested Performance Units") and shall vest on January 29th of the year following the year in which they are granted.

7. **Administrator Approval and Adjustment.** The Administrator shall approve all Performance Units earned, and all payment made thereunder, and may adjust the calculation of the Performance Objectives based on changes in local, state and federal tax laws and regulations.

8. **Clawback.** Pursuant to Section 23 of the Plan, this Award and any Unvested Performance Units and the Shares earned in any vested Performance Unit during the duration of the Performance Period may be returned to the Company in the event that the Administrator determines, in its sole discretion, that the Participant engaged in the any of the following conduct: (i) conviction in a criminal proceeding on certain misdemeanor charges or on a felony charge; (ii) engaging in conduct resulting in employment disqualification under applicable law; (iii) willful failure to perform the Participant's duties to the Company; (iv) termination for Cause; (v) violation of any applicable securities laws, rules or regulations; (vi) violation of Company policies; (vii) impairing, impugning, denigrating, disparaging or negatively reflecting upon the Company's name, reputation or business interests; or (viii) engaging in conduct detrimental to the Company.

9. **Termination of Employment.** If Participant's employment with the Company terminates during the Performance Period (for any reason or no reason, and regardless of

whether such termination is voluntary or involuntary on the part of Participant), unless otherwise agreed upon by the Participant and the Administrator, Participant shall, for no consideration, forfeit and transfer to the Company all Unvested Performance Units and this Award Agreement shall terminate effective immediately.

10. **Change in Control.** Upon a Change in Control, this Award Agreement shall be subject to Section 14(c) of the Plan.

11. **Nontransferability.** The Performance Units granted hereunder may not be sold, transferred, pledged, assigned or otherwise encumbered. Participant is expected to retain ownership of all Shares earned under this Agreement for the duration of Participant's employment with the Company.

12. **No Shareholder Rights.** Participant shall not have any voting rights or rights to receive dividends with respect to any Vested or Unvested Performance Units.

13. **Consent to Company or Administrator Action.** By accepting this award of Performance Units under this Award Agreement, the Participant shall be conclusively deemed to have indicated their acceptance and ratification of, and consent to, any action taken under the Plan by the Company or the Administrator.

14. **Miscellaneous.** In the event of any conflict between the terms of this Award Agreement and the Plan, the Plan shall control. The provisions of this Award Agreement are severable and if any one or more provisions are determined to be illegal or otherwise unenforceable, in whole or in part, the remaining provisions shall nevertheless be binding and enforceable.

OTC MARKETS GROUP INC.

By: R. Cromwell Coulson
President and CEO

PARTICIPANT

Name: _____